

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kristen Lanham-Hostetter	Team: Team # 1	CCRB Case #: 200918127	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/17/2009 9:30 PM	Location of Incident: East 37th Street & Lexington Avenue	18 Mo. SOL 5/17/2011	Precinct: 17		
Date/Time CV Reported Wed, 11/18/2009 12:17 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/24/2009 3:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Adriano Deleon	02580	940069	017 PCT
2. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Adriano Deleon	Discourtesy: PO Adriano Deleon spoke obscenely and/or rudely to § 87(2)(b)	A . Complainant Uncooperative
B . An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)	B . Complainant Uncooperative

Case Summary

§ 87(2)(b) filed his complaint with the Internal Affairs Bureau on November 18, 2009. It was received at the CCRB on November 24, 2009, under log number 09-58462. On November 17, 2009, at approximately 9:30pm, § 87(2)(b) was driving his vehicle on Lexington Avenue, near East 37th Street. Traffic was heavy, and he honked his horn and initiated his brakes to avoid a car accident. After § 87(2)(b) hit his brakes, one of two nearby police officers signaled him to pull over. The officer, described as a mixed race or Caucasian male, in uniform, approximately 5'8," in his twenties or thirties, and later identified as PO Adriano Deleon of the 17th Precinct, approached his car. PO Deleon was identified through his tax number, which was on the summons § 87(2)(b) was issued. PO Deleon told § 87(2)(b) "If you don't stop, I'll hunt you down. Fucking crazy driving." He uttered the word, "fuck," several more times, but § 87(2)(b) did not recall his exact words. PO Deleon told him he would be issued a ticket, and asked for his license and registration. While § 87(2)(b) was searching for his documentation, a second officer, PO2, approached after scanning § 87(2)(b)'s license plate. She was described as an African American female, in uniform, approximately 5'6," and in her twenties or early thirties. She remains unidentified. PO2 told § 87(2)(b) he was, "fucking around all day and screwing around." PO2 threw the summons at him and both officers left. § 87(2)(b) did not see who wrote the summons and did not know what the summons was for.

On November 30 and December 21, 2009, the undersigned investigator called § 87(2)(b) and left voicemails. On November 30 and December 9, 2009, please call letters were mailed to his residence. On December 8, 2009, the undersigned called § 87(2)(b) who informed the undersigned that he was not available and would call back. On December 9, 2009, § 87(2)(b) called the undersigned and provided a phone statement. During this conversation, mediation and investigation were discussed, but he was unsure whether he was going to file a lawsuit. He was asked whether he would prefer to send a notarized statement or if he would like to come to provide a statement in person, because § 87(2)(b) is a resident of Pennsylvania, but comes to New York frequently for business. He informed the undersigned that he did not want to make the decision at that time. On December 17, 2009, the undersigned called § 87(2)(b) and asked for his decision regarding how he would like to provide a statement. He informed the undersigned that he had not yet decided and would call back. On December 21 and 29, 2009, the undersigned emailed § 87(2)(b) and requested his decision. He never called or emailed his response.

§ 87(2)(g) it is recommended that this case be closed as ***complainant uncooperative***.

Team: 1

Investigator: _____

Signature	Print	Date
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Supervisor: _____

Title/Signature	Print	Date
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Reviewer: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature	Print	Date
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